

Ref: HR/AP/03/2024/HP

Date: March 28, 2024

Mr. Hemant Patil

Plot No.8, Gate no 99/3/a,Nimkhedi Road,Near Hira Shive Society
Vithhalwadi
Jalgaon,MH,425001,INDIA

Dear Hemant,

We are pleased to appoint you as **Associate Software Engineer in Grade G1** at **Xoriant Solutions Private Limited**, w.e.f. **March 28, 2024** as per the terms and conditions given below.

I. COMPENSATION

During your training cum probation period of 12 months, your gross annual compensation package will be **Rs Rs 6,50,000/- (Rupees Six Lakh Fifty Thousand Only)**, the breakup for which is given in Annexure A. Your probation period will be 12 months from date of joining. You will be extended full time employment on successful completion of probation period. Changes in your compensation and other terms are subject to discretion of the company, statutory requirements, your performance in the company and other relevant criteria. Tax liability will be as per Income Tax rules.

The terms of your employment are strictly confidential between you and the company. You are required not to discuss your compensation with any other employee or client.

We would like to make it clear to you that there are no other commitments made by the company in terms of your compensation or otherwise other than what is mentioned in the appointment letter.

II. DOCUMENTS

At the time of your first working date (or within one month thereafter) you are requested to submit the documents mentioned in Annexure C of your offer letter.

This appointment is offered on the basis of your having furnished the company, correct information regarding your past service and other records. If at any time it is revealed that employment has been obtained by furnishing false information or withholding pertinent information, the company can terminate your services at any time and without notice.

You are required to sign a Confidentiality Agreement which comes into effect from your date of joining.

III. LOCATION

You will be based at . However, the company may require you to work at other company locations or at the customer's site both within and outside India. You will be given reasonable notice of any travel or re-location requirement.

IV. OFFICE HOURS

You are expected to attend office, take leave or holidays according to the prevalent rules of the Company. You may also be called upon to attend to your duties as and when required in shifts or on holidays. While at the client site, you will be required to strictly follow the rules and regulations and the work schedule of the client.

Any unsanctioned absence from work for a continuous period of eight days (including your over-staying the sanctioned period of leave by eight days) may make you lose your lien on your job. Further, due to such unsanctioned leave, your services can be automatically terminated without any notice or any Compensation in lieu of such notice (as stated in the notice period of this letter) or even intimation from the Company.

If you are guilty of any misconduct the Company can terminate your employment with immediate effect.

V. LEAVES

You will be entitled to 18 days of Privilege leaves and 4 days of Casual leaves per calendar year of service, on pro-rata basis. Privilege leaves will get credited in the first week of every month for the previous month at the rate of 1.5 days per month on pro-rata basis.

Also, in case of separation, balance Privilege leaves will be paid (encashed) in Full & Final Settlement on the basis of basic pay.

VI. TRAINING

You will be required to undergo various trainings which the company may arrange for you from time to time. You will be required to adhere to the schedule as specified for the training programs.

VII. DATA PRIVACY AND CONSENT

This clause relates to the Personal Data that you may be requested to provide in connection with your employment. For clarity, 'Personal Data' is any information related to a natural person that is, or in combination with other information or otherwise, is capable of identifying such person notably including financial information such as Bank account or credit card or debit card or other payment instrument details, physical, physiological and mental health condition, sexual orientation, medical records and history, biometric information, any information or detail relating to previous employment details, educational qualifications and criminal record.

You hereby understand and consent to the Company, without any reservations, to (i) collect any of your Personal Data or other data from your last employer or through any internal or external agencies appointed for this purpose, (ii) use/retain or process such data in connection with your employment with the Company or any matters arising from such employment, and (iii) sharing such data with any outside agencies or third parties including the Company's client for verification and validation of this information, processing in relation to employment or matters arising from such employment, or in compliance with the Company's contractual or statutory obligations.

You understand that you may withdraw the consent by informing in writing to the Company's designated representative for this purpose. You also consent and accept that if such withdrawal of consent affects the purpose for which your Personal Data was sought, Company reserves the right to take steps as it deems appropriate. You understand that this consent is obtained by the Company to ensure compliance with the applicable data protection laws of India.

Changes in Personal Details:

In the event of any change in your Personal Data including but not limited to your name, residential address, telephone numbers, marital status, and academic qualifications, such changes should be notified in writing to the Company. All communication will be addressed to you on the last address notified by you and it will be presumed that you have received such communication addressed to you.

VIII. RESPONSIBILITIES

The Company reserves the right to assign responsibilities and allocate additional functions in your job description according to its need and requirements prevailing at the time. Any such re-designation will not negate any other portions of the terms and conditions of employment.

IX. TERMS OF EMPLOYMENT

- The roles, responsibilities and duties appropriate to your designation or your employment, will be specified by Company from time to time. Company may at any time in its sole discretion, upon notice to you, alter or otherwise modify these roles, responsibilities and duties. Company reserves right to assign you projects and technologies based on the requirements of the business/Clients from time to time. Further at any time, you may be required to provide services, directly or indirectly, to Company and its affiliates and their employees, contractors and clients.
- Company may at any time, in its sole discretion, require you to work beyond eight (8) hours a day upon notice to you.
- In the event of any assignment, transfer or deputation of your services, your salary and other benefits may be adjusted in accordance with Company's policies with respect to such an assignment, transfer or deputation.
- You may be required to travel, whether in or around India or overseas, in connection with your employment with Company upon short notice to you. While travelling for work, your expenses and costs in connection with such travel and any other expenses incurred by you during the course of your employment will be reimbursed in accordance with the current travel and expense policy of Company. You are expected to keep your passport valid at all times.
- Notwithstanding the above, you acknowledge that it is Company's policy to review the compensation payable to its employees for successive years and such compensation may be higher or lower than the compensation received for the previous year depending on various factors, including the overall performance of the Company.

- Unless otherwise provided by Company, your salary shall be paid in monthly installments and in arrears. The total amount issued will be your salary less any statutory, standard, permissible or elected deductions or set-offs applicable to your employment.
- In addition to your salary, you may receive other benefits, as applicable under the Company's benefits or similar policies. Company may, upon notice to you, at any time and its sole discretion amend, suspend, vary and modify any of the terms and conditions of these benefits and/or policies. The compensation and/or benefits offered to you by the Company may be pro-rated depending on your effective start or effective termination date.

X. CODE OF CONDUCT

We at Xoriant are committed to ensure 'Integrity' in all aspects of its functioning. You are expected to comply with the policies of the Company including the Code of Business Conduct and other policies of the Company as they form an integral part of the terms of your employment with Xoriant. Consequently, you are required to understand the scope and intent behind these policies and to comply with the same. These Policies are updated/modified on a periodic basis and new Policies may be introduced and notified to the employees from time to time and you will be required to comply with the same.

XI. Non Disparagement

You shall not (directly or indirectly), for any reason or no reason, at any time, make any statements (written or verbal, electronically including on social media, anonymously or otherwise) or cause or encourage others to make any statements (written or verbal, electronically, including on social media, anonymously or otherwise), which would defame, discredit, disparage or in any way criticize the Company, its affiliates, shareholders, directors, officers, employees and representatives.

XII. PROFESSIONAL ETHICS

You will be required to deal with the Company's money, material and documents and other resources, with honesty and a high standard of ethics. If you are found guilty, at any point of time of moral turpitude or of dishonesty in dealing with the Company's money or material or documents or of theft or of misappropriation, regardless of the value involved, your services would be terminated with immediate effect, notwithstanding other terms and conditions mentioned in the appointment letter.

XIII. NO DUAL EMPLOYMENT

You shall devote your full time and attention to the performance of your duties incidental to your position with the Company. During your employment with the Company, you are refrained from taking up any other employment, consultancy, or any other job (with or without remuneration), without the prior written consent of the Company. In the event you breach the terms mentioned herein, the Company at its sole discretion may terminate your employment without any notice, with immediate effect.

XIV. USAGE OF SOFTWARE/HARDWARE

You are strictly prohibited from bringing any unauthorized / infringed copies of software in the office premises, from any external sources or copying software from one computer system to another which may include any violation of the provisions of the Copyrights Act. Non-compliance of this rule will be regarded as a serious offense and will be subject to disciplinary action. It is mandatory to abide by Company's Information Security policies.

XV. NOTICE PERIOD/TERMINATION

- a. Project allocation is subject to availability of positions in the respective project at the time of your joining. Kindly note that while you have accepted the offer from Xoriant, we have initiated your Background Verification and Reference Check in parallel. In case of negative remarks, this employment will stand cancelled.
- b. This Appointment Letter may be terminated by either party by giving 90 Days written notice or gross monthly salary in lieu thereof ("Notice Period"). Any shortfall in the Notice Period shall be recovered from your full and final settlement. In case of resignation, the Company reserves the right to:
 - i. relieve you earlier than the Notice Period;
 - ii. extend your Notice Period for a satisfactory handover of charge and completing the pending assignments;
 - iii. decide whether the Notice Period shall run concurrently with the period of any leave which

may be granted to you;

- iv. direct you not to perform any of your duties and to remain away from the Company premises and/or not to contact clients or other employees of the Company for all or part of the Notice Period.

Your employment will be subject to termination by 90 Days written notice or salary in lieu of written notice from either side.

b.c. In case the last day of your employment falls on a non-working day, your last day of employment shall be the immediate previous working day. The Company reserves the right to pay or recover salary in lieu of notice period. Employees cannot use their accumulated leave to serve the notice period.

c.d. Company may terminate your employment immediately with or without notice on the occurrence of your:

i. Embezzlement, intoxication or illegal drug abuse, unauthorized absence in excess of the Company leave policy, unauthorized disclosure or misuse or attempted unauthorized disclosure or misuse of the Company's Confidential Information, gross insubordination, or receipt or attempted receipt of any impermissible rebate, kickback or other similar remuneration or consideration in connection with any potential or existing opportunity for the Company and its affiliates and their employees, contractors and clients;

ii. Engaging in misconduct (willful, intentional or otherwise) during or in connection with the performance of your obligations hereunder or being arrested, charged or convicted in a criminal proceeding or similar proceeding that involves a matter which company believes, in its sole discretion, may affect the performance of your obligations hereunder, may affect the Company and/or its affiliates and their employees, contractors and/or clients or may otherwise bring the Company and/or its affiliates and their employees, contractors and/or clients any disrepute, whether or not such matter is directly related to the affairs of the Company and/or its affiliates and their employees, contractors or clients; and/or

iii. Involvement in any act of moral turpitude.

iv. At any point of time during your service with the Company, you are found to be unfit or incapacitated on medical grounds and unable to work, you can be terminated from the services of the Company. The opinion of the Doctor appointed / authorized by the Company in this regard will be taken as final and binding.

Consequences of Termination

- Upon termination or expiration of your employment, for any reason, or as otherwise requested by Company, you will return to the Company:
 - a. Any property belonging to the Company, such as a laptop computer, mobile phone, access card and other devices with details of any passwords or user ids installed therein; and
 - b. All Confidential Information and any Work Product, including any documents and information, of whatever description or in whatever form, tangible or intangible, in your possession, together with copies, notes or summaries of such documents and your own working papers which are derived of or based on such documents.
- c. In case of termination in any of the above mentioned clauses [Note: point XIII (a), (b), (c)], termination from the services of the organization will be immediate without notice pay.
- Upon termination or expiration of your employment, for any reason, amounts due or payable, from, or to you by the Company shall be settled in full and an acknowledgement of such settlement shall be recorded in writing.
- Upon termination or expiration of your employment, for any reason, Company shall be entitled to, at its sole discretion, pursue any remedy available in law or in contract to ensure settlement of any amounts owed by you hereunder, including costs and expenses incurred towards your training. Further, Company shall be entitled to, at its sole discretion, withhold the relieving letter and all other documents regarding your employment hereunder.
- Any termination of employment or these Terms of Employment by Company shall be without any further liability of Company and its affiliates and their employees, contractors or clients to you or to your successors-in-interest or assigns.

Please also note that the above rules and regulations are subject to change at the sole discretion of the Company, without any notice.

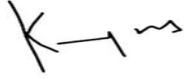
Please sign a copy of this letter and return the same to us indicating your acceptance of this appointment and the terms and conditions.

We welcome you aboard and look forward to a mutually rewarding association!

Best wishes,

For Xoriant Solutions Private Limited

Agreed and Accepted on:



Krupa NS
Chief HR Officer

Hemant Patil

Annexure A

Name - Hemant Patil
Designation - Associate Software Engineer
Grade - G1
DOJ - March 28, 2024

SALARY STRUCTURE	PER MONTH	PER ANNUM
BASIC	16,250	1,95,000
HOUSE RENT ALLOWANCE	8,125	97,500
CONVEYANCE ALLOWANCE	1,600	19,200
FIXED ALLOWANCE	19,594	2,35,125
MEAL COUPON	2,200	26,400
GIFT CARD	417	5,000
A	48,186	5,78,225
MEDICAL ALLOWANCE	1,250	15,000
LEAVE TRAVEL ASSISTANCE	2,000	24,000
B	3,250	39,000
C	51,436	6,17,225
PROVIDENT FUND	1,950	23,400
GRATUITY	781	9,375
D	2,731	32,775
CTC = C + D	54,167	6,50,000

Note:

*Please note, taxes wherever applicable will be deducted at source.

*No commitments from the company regarding the taxability or otherwise for any of the components of salary & perks, which can vary from time to time on prevailing Tax Laws & on the basis of which tax will be deducted.

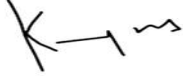
*As an employee of Xoriant, you will also be covered under Insurance, Family Floater Mediclaim Policy and Personal Accident Policy.

*Provident Fund deduction will be applied as per existing PF Regulations.

*Gratuity payable only on completion of 5 years of continued service of employment with Xoriant.

*Club Mahindra membership is applicable to employees joining in Grade G7 and above.

For Xoriant Solutions Private Limited



Krupa NS
Chief HR Officer

Agreed and Accepted on:

Hemant Patil